
The Distinction between Architects, Architecture and the Profession Architecture

Professional Practice 1
Peter Brew | RMIT Architecture

Concept	Induced (Synchronic)
Knowing	Teleological (Purpose)
Arendt(HumanCondition)	Labour
Model (Idea)	As Good
Business Model	As Input Cost
Obligation/Duty To	Proponent (The Client)
Research Object	Product (Theory)
Ethics	Personal
Competition (Site)	Design
Regulation	Constraint
Education	Training
Legal Concept	Law (Follow)
Capital	Labour
Contract	Cost Plus

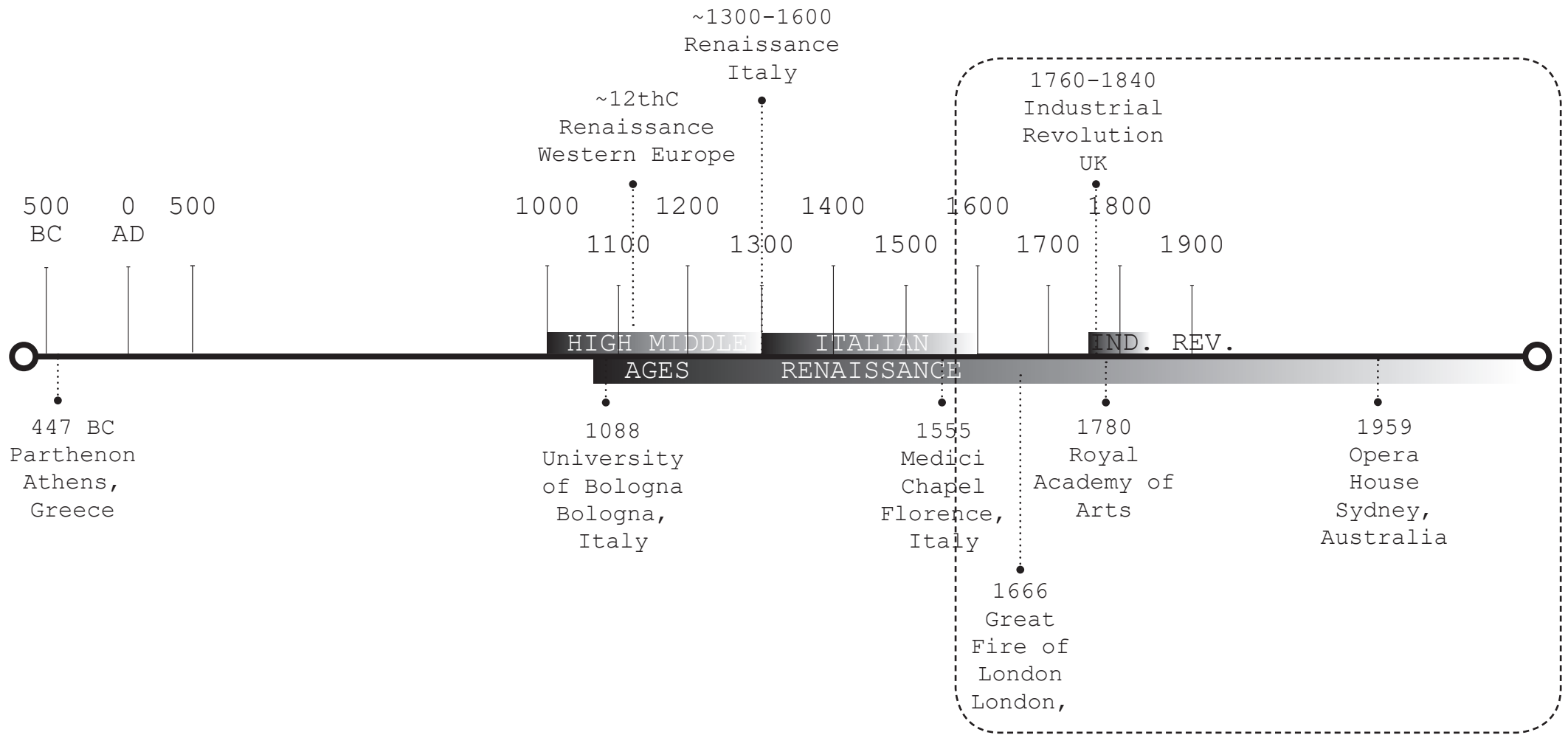
disciplinary matrix

Deduced (Diachronic)	(Philosophy)
Aetiology (Cause)	Ontological (Being)
Work	Activity
As Service	As Regulation
Fee for Service	Levy on Transaction
Profession	Public
Project (Theory)	Subject (Theory)***
Professional (Deantic)	Political Civic (RRI)
Industry	Economy/ Trade
Application/Administration	Formation/ Design*
Learning	Understanding
Act (Apply)	Judgemnt **
Work	Investment
Lump Sum	Alliance

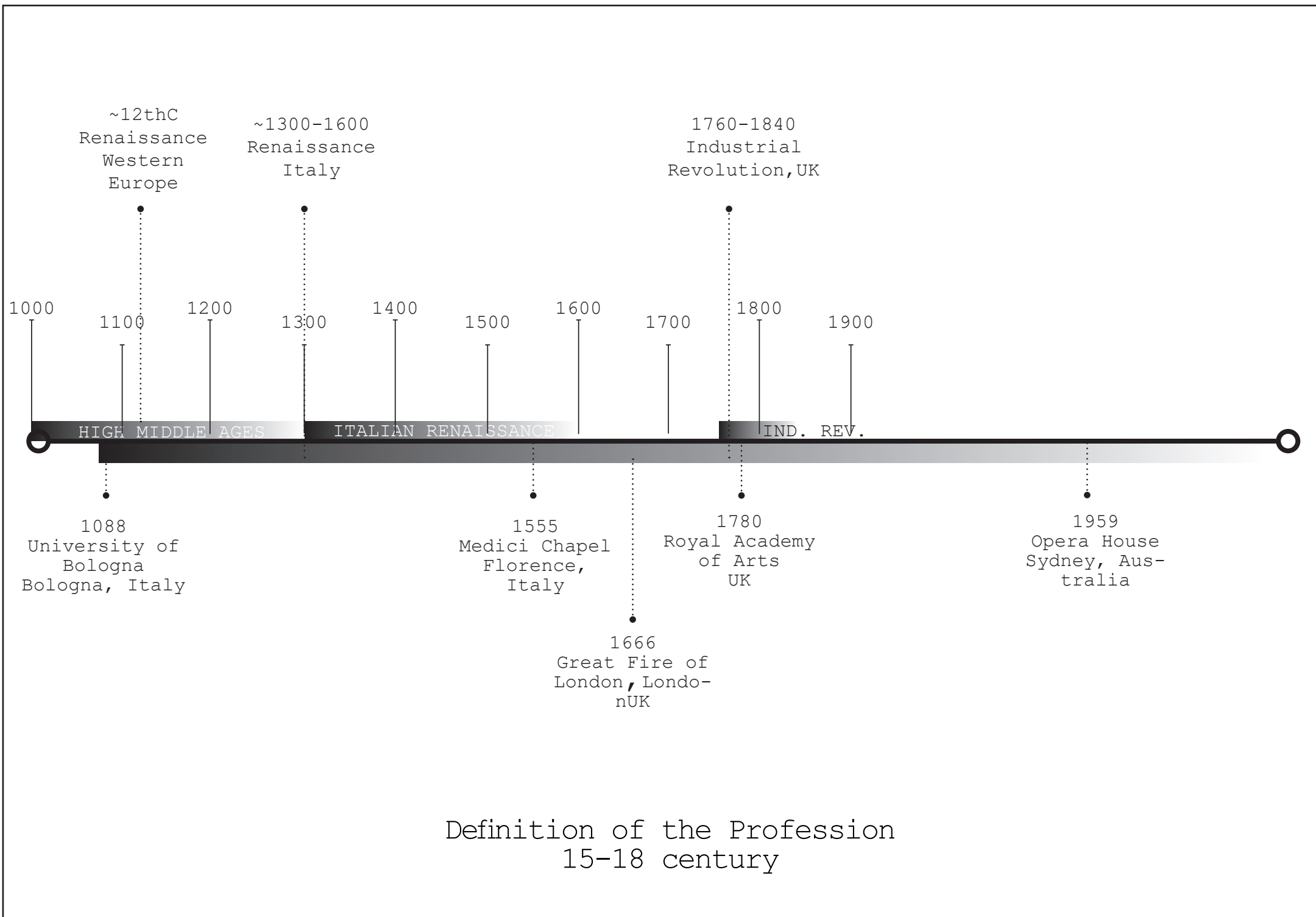
* Rousseau the law giver I The Social Contract

** Derrida Force of Law: The "Mystical Foundation of Authority"

*** Althusser in For Marx makes the distinction between T Theory and t Theory



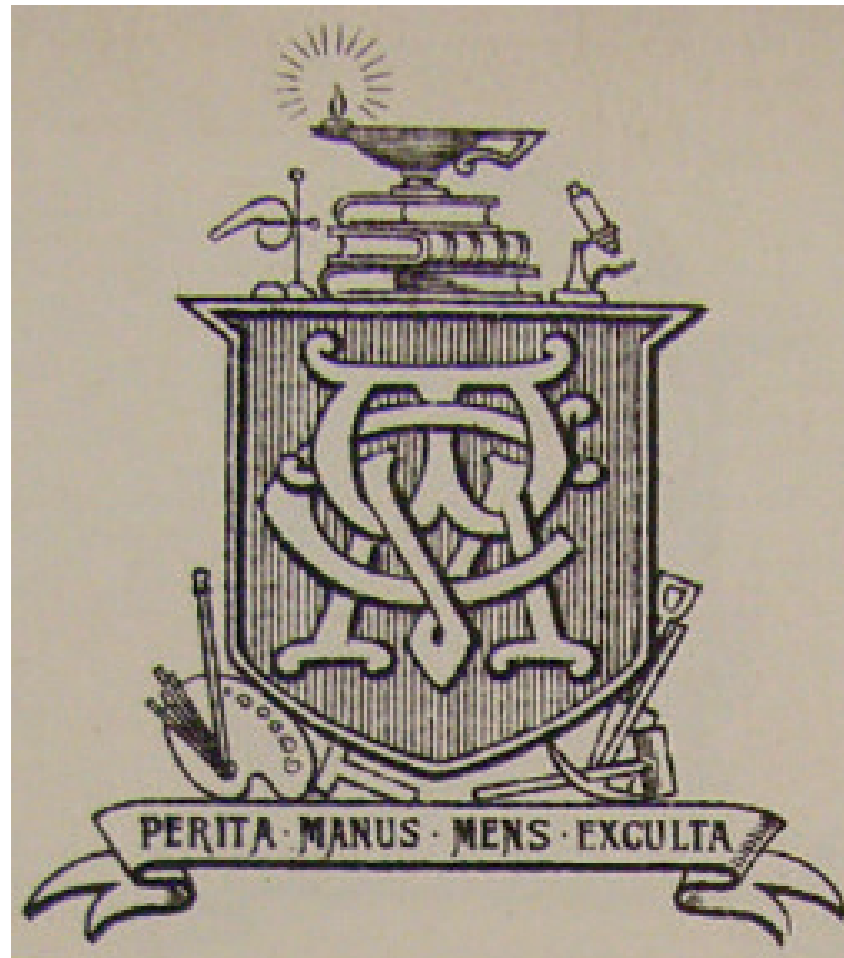
History of the Architecture



RIBA Formed	1834				
RIBA Exam	1860				
Part	I	Academy	1882	{	University Course/Higher Degree
	II	Academy	1882		University of Melbourne - Ethics Course 1888
					Working Mans College 1887
					RMIT University 1992
	III	ARBV	1922		Architects Act

The Academy & The
Profession

UNIVERSITY = HIGHER LEARNING



Working Mens College
Melbourne Crest

When a professions subject is an object (i.e. a building) how is agency assigned? What mechanisms allow this to be demanded or acquired? i.e.

As Architects we have a duty to the "other". How do we define the "other"? I.e. community, future users,

Deontology / Professional Ethics

-agency
-permission

-duty
-obligation

As architects we are given the status of "ARCHITECT" by law so what does this status give us permission to do?

George Beaton:

"A profession is a **disciplined** group of individuals who adhere to **ethical standards** and hold themselves out as, and are accepted by the public as possessing **special knowledge**. It is inherent in the definition of a profession that a code of ethics **governs** the activities of each profession. Such codes require behaviour and practice beyond the personal moral obligations of an individual. They define and demand high standards of behaviour in respect to the services provided to the public and in dealing with **professional colleagues**. Further, these codes are **enforced by the profession** and are acknowledged and accepted by the community."

"What, then, if anything, distinguishes a profession from, say, a trade or craft? skills in a widely recognised body of learning derived from research, education and training at a high level, and who are prepared to apply this knowledge and exercise these skills **in the interest of others**."

~ Why Professionalism is Still Relevant.
U of Melbourne Legal Studies Research Paper No. 445,

SPECIALISED
DISCIPLINARY
KNOWLEDGE

HIGHER
LEARNING-
UNIVERSITY

REGULATED

George Beaton:

MORAL CODE

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AUTONOMY

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ALTRUISM

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INSTITUTE

Jeremy Till:

"...Architects are not acting for themselves but on behalf of others, and this means acting ethically."

~Architecture Depends

Rem Koolhaas:

"Architecture is a hazardous mixture of omnipotence and impotence."

~S,M,L,XL

Agency, responsibility duty and
obligation

A persona

The thing Architecture

The subject

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~S,M,L,XL

We have ideas about how
things should be...

We can not make them
happen on our own..

DISCIPLINARY
KNOWLEDGE

Subject of Science is
constructed by Knowledge.
Expressed through Skeleton,
Measuring devices, maps,
construction site.



Académie_des_Sciences_1671

Observed knowledge from
historical archaeological sites,
the achievements of exemplarly
architecture



J.M.W. Turner. Detail from The
Fifth Plague of Egypt



CFP Board Public Awareness Campaign - It's Gotta Be a CFP (Surgery, :30 second spot)



ORAL B Toothbrush Commercial (This man is a dentist so we cant show you his face)

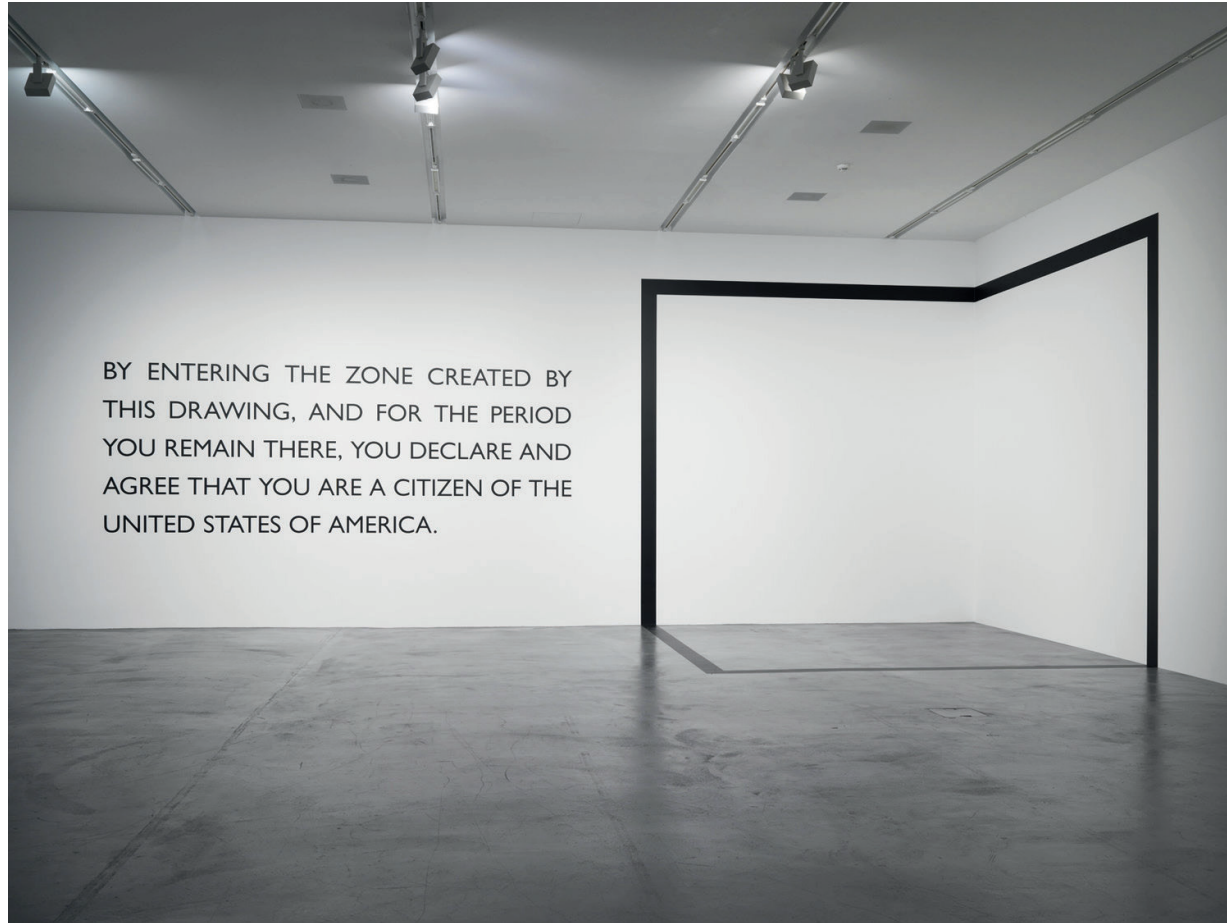
REGULATION

Has a body.

Written for
someone to read
and act on .
You declare you
are a citizen.

Consent/
Agreement

Written for
someone to read
and act on



Timeframe

.. for the
period you
remain there.

carey young

AUTONOMY

The Architect is obliged to speak on behalf of
the subject. I.e. the building.

Has a body.
Photograph of
chair

Has a body.
Physical chair
in gallery



Has a body.
Description of
the chair

Has a body.
A representation
of a chair and all
chairs

Joseph Kosuth. One and Three
Chairs. 1965 | MoMA

Ethics for Architects

50 Dilemmas of Professional Practice

*Thomas
Fisher*

Architecture Briefs
The Foundations of Architecture

ARCHITECTURE DEPENDS

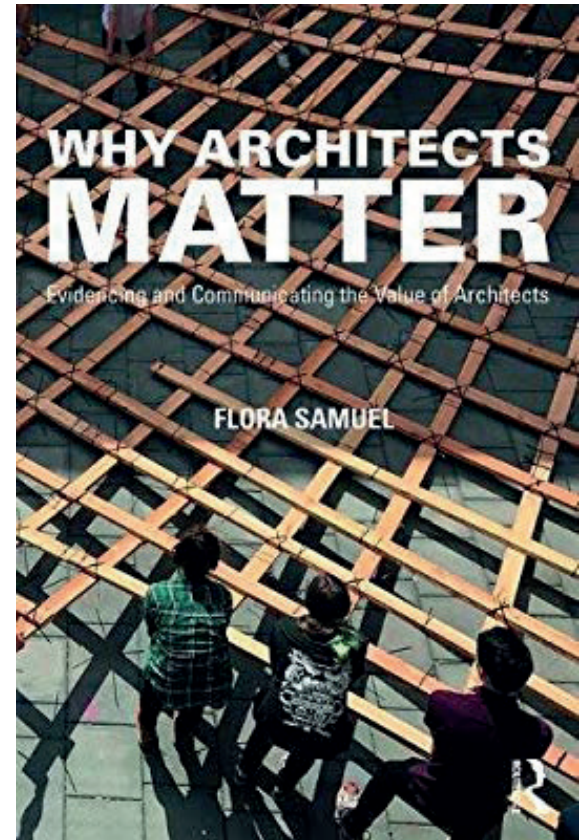


Jeremy Till

WHY ARCHITECTS MATTER

Evidencing and Communicating the Value of Architects

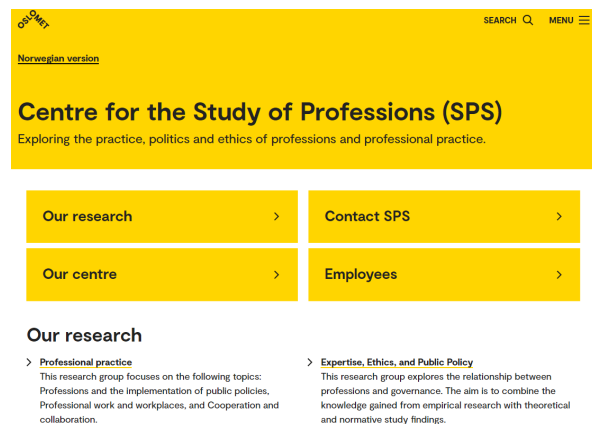
FLORA SAMUEL





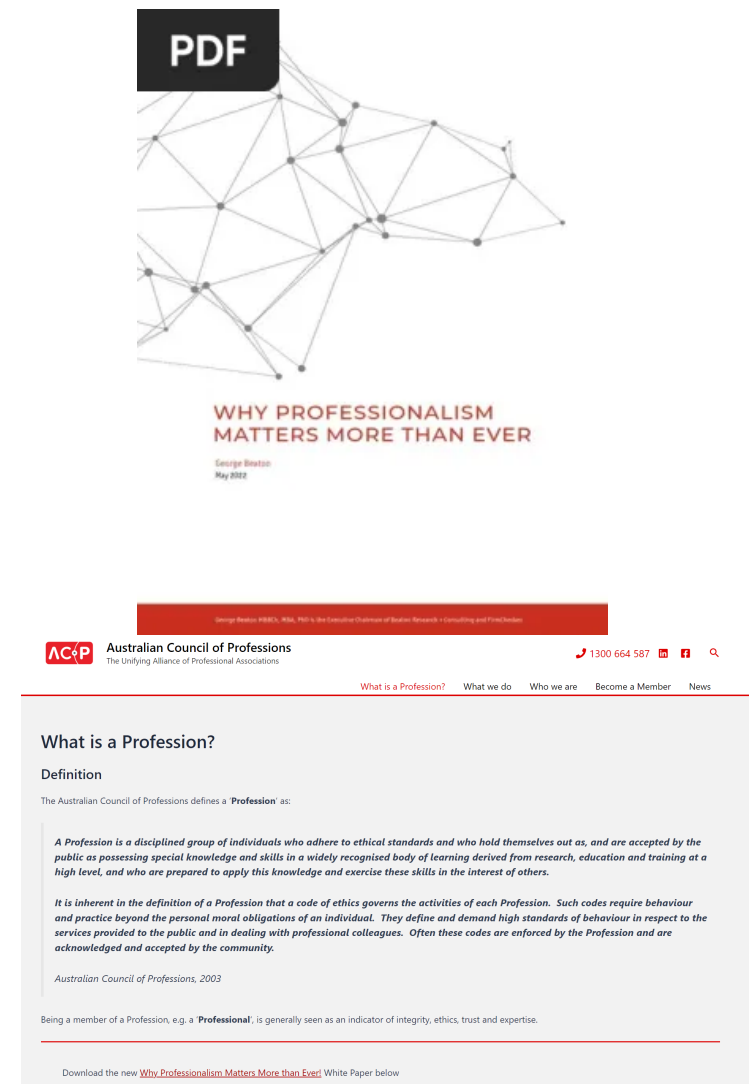
Professional Discretion and Accountability in the Welfare State.

Anders Molander,
Harald Grimen, Erik Oddvar Eriksen.



Structural and Institutional Invariance in Professions and Professionalism

David Sciulli

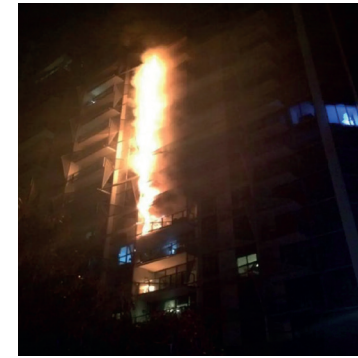


Why Professionalism is Still Relevant

George Beaton



NEO 200
Hayball architects



LACROSSE TOWERS
Elenberg fraser



GRENFELD TOWERS



OPAL TOWERS
Bates Smart Architects

settlement and withdrew their involvement before the hearing.

Judge Woodward's findings

His Honour found that:

1. The external cladding specified in the original design, namely Alucobond, failed to comply with the Building Code of Australia (BCA). The substitute aluminium composite cladding (ACP) ultimately installed also failed to comply with the BCA and accordingly, the *Building Regulations 2006 (Vic)*.
2. In installing the cladding, L U Simon breached the implied warranties of suitability of materials, fitness for purpose and compliance with the law set out in section 8 of the *Domestic Building Contracts Act 1995 (Vic)* and is therefore liable to pay damages to the Owners. However, his Honour found that L U Simon did not fail to exercise reasonable care in the construction of the Tower.
3. Each of the consultants (Gardner Group, Elenberg Fraser and Thomas Nicolas) breached their obligations to L U Simon under their respective consultant agreements (which were novated to L U Simon by the developer) by failing to exercise due care and skill in that:
 - Gardner Group issued a Building Permit for the relevant stage of the building approving the specification by Elenberg Fraser of the ACP. Gardner Group also failed to notice and query the incomplete description of the cladding system in a report produced by the Thomas Nicolas.
 - Elenberg Fraser failed to remedy defects in its design (namely the specification of ACP and design drawings providing for extensive use of ACPs at the Tower) which caused the design to be non-compliant with the BCA and not fit for purpose. Elenberg Fraser also failed as head consultant to ensure the ACP sample provided by L U Simon was compliant with Elenberg Fraser's design intent as articulated by its specification and the BCA.
 - Thomas Nicolas failed to conduct a full engineering assessment of the Tower in accordance with the International Fire Engineering Guidelines and failed to include the results of that assessment in its fire engineering report. Thomas Nicolas also failed to recognise that the ACP used at the Tower did not comply with the BCA and did not warn L U Simon (or Gardner Group, Elenberg Fraser or PDS) accordingly.
 - The resident, Mr Gubitta, had breached a duty of care owed to the Owners by failing to take care in the disposal of his smouldering cigarette, but concluded that his responsibility for the loss and damage was minimal.



ai-weiwei-remembering-haus-
der-kunst-muenchen-2009-so-
sorry

Monday, 16 June 2025

Daniel Moore, RAIA
Executive Director, Victorian Chapter
Australian Institute of Architects
[L4/ 41 Exhibition Street](#)
[Melbourne, VIC 3000](#)

Briefing Paper – A question of the value of architects and the architecture of evaluation - consideration of matters in the presenting a case for Architects Registration

Prepared by: Dr Peter Brew & Helen Duong | RMIT Architecture | RMIT University | Melbourne | Australia

Context

- Building Confidence, Australian Government Department of Industry, Science and Resources. 2018 Shergold, Wier.
- Productivity Commission 2000, Review of Legislation Regulating the Architectural Profession, Report no. 13, Aus Info, Canberra.
- Draft NSW Building Bill 2024 (?) inc Architects registration.
- NSW AIA Chapt response. Adam Haddow and others.
- Detailed Deep Dive Report into Systemic Risks in the Architecture Sector/ June 2024, ARBY, NSWARB.
- Owners Corporation No.1 of PS613436T v LU Simon Builders Pty Ltd (Building and Property) [2019] VCAT 286 28 Feb 2019
- Recent Changes and proposed framework for a new Building Act for Victoria. (2023-ongoing)

The events that prompted the 2018 Building Confidence report and the unfolding response to it have highlighted gaps in the knowledge, practice and, significantly, in the literature as to the role, nature and responsibilities of architects. This is reflected in the reports listed above, the response to the reports by industry and professional bodies, and now in the proposed changes and reforms that are in part a response to these reports.

In considering a response to the amendments to the Architect Registration Act and the Building Act in NSW and now a similar proposal in Victoria it is timely to undertake a strategic review of the purpose and consequences of the Registration Act and to test the premise of these reports. While accepting that legitimate questions can be framed around the relevance and efficacy of the current situation, we need not to miss the real opportunity to recognise the impact licensure of architects has had and to open the discussion to new ways of thinking about what it is that we do as well as imagining new ways to do that.

While much of the current momentum for 'reform' revolves around questions of responsibility and oversight there is also ideological and methodological problems with both Building Confidence report 2018 and, in particular, the Productivity Commission 2002 Review of Legislation Regulating the Architectural Profession, that need to be challenged. The review did not assess the economic benefit of Regulations, despite this being explicitly part of its scope:

4. In making assessments in relation to the matters in paragraph 3, the Commission is to have regard to the following matters, where relevant: the quality of the built environment and government legislation and policies relating to environmentally sustainable development; social welfare and equity considerations; community service obligations; government legislation and policies relating to matters such as occupational health and safety, industrial relations and equity; economic and regional development, including employment, investment growth; the interests of consumers generally or of a class of consumers; the competitiveness of Australian business; and the efficient allocation of resources.

For *THIS WAS NEVER INCLUDED IN THE PRODUCTIVITY COMMISSIONS FINDINGS*
In the Commission's assessment, the costs of current Architects Acts (under review) outweigh the benefits, and therefore net community benefits are negative.

Which lead them to recommend,
State and Territory Architects Acts (under review) should be repealed after an appropriate (two-year) notification period to allow the profession to develop a national, non-statutory certification and course accreditation system which meets requirements of Australian and overseas clients.

THROUGH OUT PROFESSIONAL PRACTICE SUBJECT WE PROPOSE

We do this by recognising:

1. The consequences of architects tendering work; the convening of competition events
2. The extent to which architects regulate the building industry, in terms of reviewing firms compliance and currency, the setting of terms and conditions
3. The enactment of government policy objectives (access, biodiversity, inclusion, environmental and access policy into standard of practice, competency standards etc)
4. The price setting mechanism and feedback caused by architects practice
5. The research and development of the industry by architectural research through collaboration with industry
6. Effects on finance, insurance, legal services. The architectural project is a legally binding object – this is an effect of legislation
7. Conflict resolution – by being a delegated authority
8. The design and making of markets -causing competition

While much of the current momentum for 'reform' revolves around questions of responsibility and oversight there is also ideological and methodological problems with both Building Confidence report 2018 and, in particular, the Productivity Commission 2002 Review of Legislation Regulating the Architectural Profession, that need to be challenged. The review did not assess the wider economic benefit of Regulations, despite this being explicitly part of its scope:

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Finding;

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State and Territory Architects Acts (under review) should be repealed after an appropriate (two-year) notification period to allow the profession to develop a national, non-statutory certification and course accreditation system which meets requirements of Australian and overseas clients.

In essence they were tasked to look at the impact of Architecture registration widely and failed to do so.

Methodology

Over the last 5 years of research at RMIT we have developed a model and method that recognises the impact of architecture. Instead of focusing on design, which we acknowledge as a good but not a greater good, We look at what architects do when they work. we look at the ways architects deliver both public and private sector projects and the effect this has on the building industry and more broadly on sectors such as finance and property. In more recent work We have also looked at the way architects enact government policy; all of which the Productivity Commission simply ignored though it was obliged to consider.

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To do this we adopt a method used by the Victorian Government Department of Treasury and Finance to assess the 'impact' or Wider Economic Benefit of Architecture.

Sidenote: The goal of this had initially had been to define BITRE category WEB 3 which relates to the measurement of Wider Economic Benefits

https://www.atap.gov.au/sites/default/files/13_wider_economic_benefits.pdf The initial template adopted the BITRE project appraisal form though I have also used UK Prince2. Both of these align with the Victorian Government method, which is the current form I have used.

Our findings suggest that the value caused by architects to the economy to be much greater than what is recognised; and in concert with other regulatory practices, planning, finance and judicial institutions, their combined contribution to the Australian building industry is something like \$20B annually in 2024 figures.

This figure may seem outrageously high, but we think that is the point: We have been looking at the value caused by architecture to the direct client or direct building which has been the basis of current studies where it is a factor (nom 20%) of the value of that construction. If we look at the effect of architecture, we start to consider the impact on the wider industry and environment. This is a factor (nom 20%) on the gross output of the industry.

We are proposing a methodological shift in the way we value architecture.one that should have been picked up by the productivity commission.

In summary, the method and conclusion of the Productivity Commission is in effect the same as what the AIA has put forward in recent submissions, where the value of architecture registration is argued in terms of the quality of design. This is acknowledged by the Productivity Commission and rightly dismissed as being not relevant to the matter of architectural registration.

Recommendations

In response to the proposed amendments to the Architect's Act and Building Act, the AIA to commission a review to:

1. Evaluate the current Act, what it does, how it does that and what it does not do.
2. Highlight the significant difference that this may have in understanding the aim and effect of the proposed legislative reforms.
3. Recognise the problems behind the legislative reform that have been identified that need solutions.
4. Consider efficacy of proposed amendments and proffer alternative solutions.
5. Adopt the format of the Department of Treasury and Finance (HVHR) for project appraisal in any submission that is made.

We would be willing to assist with such a review as an extension of my research at RMIT in partnership with the AIA.

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